

WEBER v. PAUL

21CV45397

DEFENDANT’S MOTION TO TRANSFER ACTION TO CONTRA COSTA COUNTY AND FOR ATTORNEY’S FEES

This is a personal services dispute regarding residential landscaping services. Before the Court is defendant’s opposed motion to transfer the action to Contra Costa County.

The salient facts, which are admittedly hard to extract, appear to be as follows:

On or about 03/05/20, plaintiff David Weber and defendant Denise Paul entered into a contract by which plaintiff (landscaper) agreed to provide defendant (homeowner) with landscape services for a fixed amount of \$9,480.00.

According to plaintiff, this was a heavily discounted estimate, offered on defendant’s promise that she had more future projects. Apparently, those “other” projects never came to fruition, and the former working relationship degenerated.

On 09/05/20, defendant filed a small claims action (apparently in Contra Costa or Alameda County) against plaintiff and his landscape company for \$5,000. Weber did not appear for trial and default judgment was entered in the amount of \$3,165.92. Weber’s subsequent motion to vacate was denied, and his attempted appeal denied as untimely.

Four weeks after the small claims case came to an end, plaintiff commenced the present action in Calaveras County. The operative pleading – while far from any beacon of clarity – purports to contain six causes of action, ranging from equity to contract and tort. Each cause of action must be separately considered to determine whether Calaveras County represents a proper venue. (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 488; *Capp Care, Inc. v. Superior Court* (1987) 195 Cal.App.3d 504, 508.)

Venue rules designate a particular county (or counties) within California as the proper place for trial. The purpose of venue rules is to give defendants some control in the choice of where they are sued. Venue is not jurisdictional in the fundamental sense, though certain actions can “only” be brought in specific counties. The test largely begins with whether the main relief sought in the original operative pleading relates to rights in realty (local) or personalty (transitory). Venue is to be determined at the outset of the action based on the averments set forth in the operative pleading when the motion to

transfer is first made. The burden of proof on a venue challenge rests with the moving party to overcome the strong presumption that the plaintiff has selected a proper venue. (*Brown v. Superior Court* (1984) 37 Cal.3d 477, 482; *Dow AgroScience LLC v. Superior Court* (2017) 16 Cal.App.5th 1067, 1076-1078; *Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 836; *K.R.I. Partnership v. Superior Court* (2004) 120 Cal.App.4th 490, 505; *Alexander v. Superior Court* (2003) 114 Cal.App.4th 723, 731.)

Actions for breach of a contract are properly sited in the county where (1) a defendant resides, (2) where the contract was accepted, (3) where the contract is to be performed (if expressly specified in the writing) or, (4) if the contract was for personal, family or household services, where the buyer signed the contract.)See CCP §395; *Fontaine v. Superior Court* (2009) 175 Cal.App.4th 830, 838.)

Actions for defamation are properly sited in the County where the defendant resides. (*Graham v. Mixon* (1917) 177 Cal. 88, 93; *Williams v. Superior Court* (2021) WL5027187 at *3-5 (certified for publication 10/29/21).) So too are actions for common law fraud and declaratory relief.(See *Quick v. Corsaro* (1960) 180 Cal.App.2d 831, 834-835.)

Based on the operative pleading, it appears that *plaintiff* resides in Calaveras County (Complaint Para 1), *defendant* does business in Alameda County (Complaint Para 1), the properties needing landscape services were in Alameda County (Complaint Para 4), and the contracts were to be performed in Alameda County (Complaint Para 7). There is no averment regarding the place of making (where acceptance occurred).

The moving party provides her own evidence supporting the claim that Calaveras County is not a viable venue. Initially, she provides a declaration attesting to the fact that she lives in Contra Costa County, and that the work was for properties located in Alameda County. She provides a copy of the written contract, albeit one that is illegible. She also provides renderings for landscape work at three properties, all of which appear to be located within the County of Alameda. She provides Weber's answer from the small claims case, insisting that the action be moved to either San Joaquin County or Alameda County (which the Court declines to take Judicial Notice of, determining it to be of limited relevance at best). She also provides an e-Filing receipt for a related case filed in San Joaquin County Superior Court earlier this year.

Finally, with regard to the putative venue selection clause allegedly establishing Calaveras County as the County of choice for the parties, this Court declines to accept this possibility. First, the clause on page 7 (as described by the parties) is not a proper venue-selection clause, nor is it a "special contract in writing" for venue purposes, since the clause does not purport to specify the place of performance. (See *Mitchell v. Superior Court* (1986) 186 Cal.App.3d 1040, 1047; *Armstrong v. Smith* (1942) 49 Cal.App.2d 528, 537.) Second, plaintiff's failure to assert Calaveras County as a proper venue in the related small claims action raises serious doubt about the validity of the interlineated venue selection clause in the operative agreement. Third, given the situs of

work to be performed, there is no plausible explanation for selecting Calaveras as the county to try disputes, and trial courts are free to reject venue preferences if they offend the public policy behind statutory venue rules. (See, e.g., *Battaglia Enterprises, Inc. v. Superior Court* (2013) 215 Cal.App.4th 309, 315; *Alexander v. Superior Court* (2003) 114 Cal.App.4th 723, 731; *Arntz Builders v. Superior Court* (2004) 122 Cal.App.4th 1195, 1204.)

Based on the whole of the evidence submitted herein, this Court concludes that Calaveras is not a proper venue for the trial of this matter and therefore defendant's Motion to Transfer Venue is GRANTED. This action is properly tried in either Alameda County or Contra Costa County, and it remains defendant's choice to make; she has selected Contra Costa, and as such that is where this action shall be transferred.

Separately, defendant requests fees and costs associated herewith. Pursuant to CCP §396b(b), "in its discretion, the court may order the payment to the prevailing party of reasonable expenses and attorney's fees incurred in making or resisting the motion to transfer ... the court shall take into consideration (1) whether an offer to stipulate to change of venue was reasonably made and rejected, and (2) whether the motion or selection of venue was made in good faith given the facts and law the party making the motion or selecting the venue knew or should have known." This Court finds that defense counsel engaged in an adequate meet and confer *with plaintiff* prior to filing this motion, and that there was sufficient opportunity for plaintiff to evaluate the propriety of venue here. Based on plaintiff's email to counsel dated 09/11/21, bad faith is evident. Plaintiff references suing defendant in three different forums, and suggests settlement, permitting the obvious inference that part of this campaign is to cause defendant financial ruin. Nowhere in the email does plaintiff explain why Calaveras County is a valid venue, and it is only after plaintiff retains a lawyer that the interlineated contract comes to light (metaphorically speaking since, again, this Court cannot decipher the copies provided).

As to the amount, defense counsel charges a reasonable \$225/hr. Based on the relative straightforward nature of this motion, this Court finds that 2 hours is sufficient. That totals \$450. Counsel has already offered to cover the transfer fee of \$485.00, which is unusual given CCP § 399(a) and *Stasz v. Eisenberg* (2010) 190 Cal.App.4th 1032, 1037 [plaintiff's duty to tender transfer fees upon penalty of dismissal]. Nevertheless, since defense counsel already tendered it, the transfer fee is included, bringing the entire sanctions award to \$935.00 to be paid by plaintiff to defense counsel within 10 days.

The Clerk to provide notice of this Ruling forthwith to the parties. Defendant to provide a formal Order complying with Rule of Court 3.1312 in conformity with this Ruling.

**GUARANTY HOLDINGS v. RESORT OF LAKE TULLOCH, et
al.**

20CV44713

PLAINTIFF'S MOTION TO EXPUNGE LIS PENDENS

This is a civil dispute over the alleged unauthorized removal of fixtures from certain real property located at 108 Sanguinetti Court, Copperopolis, CA, which plaintiff acquired at a trustee's foreclosure sale. Before the Court is an unopposed motion to expunge a lis pendens recorded by the prior owners in underlying civil actions designed to stave off foreclosure (Plaintiff's Request for Judicial Notice is granted pursuant to Evidence Code Sections 452 and 453 as to all eight offered exhibits; see 18CV43734 and 19CV44032). (This is a *renewed* motion, the prior having been denied without prejudice for failing to comply with Local Rule 3.3.7.)

Pursuant to CCP §405.30, anyone with an interest in real property may move a court for an order expunging a *lis pendens*. A court "shall" grant a motion to expunge if either of the following conditions exist:

- (1) The pleading upon which the lis pendens is based does not contain a real property claim (CCP §405.31); OR
- (2) The claimant has not established by a preponderance of the evidence the probable validity of the real property claim (CCP §405.32).

The Legislature created expungement procedures to timely weed out groundless claims and mitigate against and control misuse of the lis pendens procedure. (*Palmer v. Zaklama* (2003) 109 Cal.App.4th 1367, 1375-1376; *Castro v. Superior Court* (2004) 116 Cal.App.4th 1010, 1023; in accord, *United Pacific Operations and Consulting, Inc. v. Gas and Oil Technologies, Inc.*, WL 4591062 at *6 (E.D. Cal. 2011)). As such, the ultimate burden of proof rests not with the party seeking expungement but rather with the party responsible for filing the lis pendens. (*Amalgamated Bank v. Superior Court* (2007) 149 Cal.App.4th 1003, 1007; *Shah v. McMahon* (2007) 148 Cal.App.4th 526, 529.)

Here, the defendants cannot establish probability of success with regard to their real property claims asserted in 18CV43734 and 19CV44032 since both of those lawsuits have been dismissed adverse to the defendants.

There is the interesting issue of a lis pendens recorded for a lawsuit that is no longer active. A lis pendens is nothing more than notice of a pending lawsuit in which a real property claim is alleged. CCP §405.2. As observed by the Court in *Garcia v. Pinhero* (1937) 22 Cal.App.2d 194, 196-197: "The constructive notice which is afforded by the recording of a notice of lis pendens is notice that an action has been instituted and is pending. Its sole object is to afford constructive notice that this particular action is pending. When the action wherein the notice is filed ceases to be pending and is